

CMCA "SHORT TERM STAY POLICY" - SOURCED ANALYSIS

Boyup Brook (Flax Mill) Caravan Park evictions

Prepared 13 June 2026. NOT legal advice - analysis of primary documents for advocacy use.

SOURCES (documents supplied):

- Shire of Boyup Brook Ordinary Council Meeting minutes, 28 May 2026 (UNCONFIRMED - to be confirmed at the 25 June 2026 OCM).

- Item 10.4.1 Boyup Brook Caravan Park monthly report for April 2026 (pp 26-30). Author: Carolyn Mallett, Executive Manager Corporate Services.

- Item 10.4.2 Flax Mill Caravan Park Boyup Brook - Short Term Stay Policy (pp 31-36). Author: Carolyn Mallett, EMCS. Council Decision CM 26/05/117, carried 7/0.

- Public Question Time (pp 6-10).

- Attachment 10.4.2A - CMCA Parks Guest Stay Policy (CMCA-GSP-FMB-001 v1.0, dated April 2026).

- Attachment 10.4.2B - CMCA Parks Essential Worker Extended Stay Application.

External: Consumer Protection WA, "Residential parks law review" - [https://](https://www.consumerprotection.wa.gov.au/residential-parks-law-review)

www.consumerprotection.wa.gov.au/residential-parks-law-review (confirms a statutory review of the Act is underway).

1. WHAT COUNCIL ACTUALLY DECIDED

On 28 May 2026 Council (Decision CM 26/05/117, 7/0) resolved to support the CMCA Parks Guest Stay Policy and the Essential Worker Extended Stay Application process, and to authorise the CEO (in consultation with the CMCA Manager) to assess essential-worker applications case by case. The report also proposed that existing guests beyond the stay limits be given 21 days' notice to vacate (item 10.4.2, p32).

2. THE EVICTION MECHANISM - AND WHY IT IS LEGALLY WEAK

The 21-day eviction sits in the policy itself. CMCA Guest Stay Policy, Section 5 "Notice to Existing Long-Term Guests": any guest residing at the park for more than three (3) months when the policy takes effect "must vacate their site within 21 days from the date of this notice."

Why this is weak: a policy adopted by Council/CMCA cannot override the Residential Parks (Long-stay Tenants) Act 2006 ("Parks Act"). A long-stay tenant is someone with a fixed or periodic tenancy of 3 months or more (other than a holiday). For a long-stay tenant, termination must follow the Parks Act grounds and notice procedures, and physical removal requires a State Administrative Tribunal (SAT) order - the park cannot self-evict by issuing its own 21-day notice. Mel's "toilet paper" assessment is well supported. (Sources for the Parks Act framework are in the earlier brief: legislation.wa.gov.au and consumerprotection.wa.gov.au/ending-residential-park-tenancy.)

3. THE POLICY CITES THE WRONG ACT

Guest Stay Policy, Section 1 (Purpose): management will enforce "in accordance with the Residential Tenancies Act and applicable caravan park legislation." For long-stay park residents the governing law is the Residential Parks (Long-stay Tenants) Act 2006, NOT the Residential Tenancies Act 1987. The officer report's own statutory environment (item 10.4.2, p35) correctly lists the Parks Act - so the policy and its report disagree on the legal basis. Mis-stating the governing law undercuts the policy's claim to be lawfully enforceable.

4. THE SHIRE'S OWN DAMAGING ADMISSIONS (item 10.4.1, pp 27-28)

In the April 2026 caravan park report the Shire records, in its own words:

- occupancy "largely driven by longer stay visitors";
- demand for "extended residency" has remained consistent;

- extended stays increasingly sought "due to the limited availability of affordable housing within the region";
- a risk that the park "may be perceived as facilitating longer term or semi-permanent residency";
- "risks associated with the Shire holding the Caravan Park licence";
- the Shire and CMCA are "awaiting the outcome of the statutory review of the Residential Parks (Long-stay Tenants) Act 2006."

Significance: the Shire acknowledged in writing that it knew (a) people are living there long-term, (b) some because there is nowhere affordable to live, (c) the licence risk sits with the Shire, and (d) the Parks Act may apply and is under review - and proceeded with a 21-day self-eviction mechanism anyway.

Note on accuracy: the report names the review body as "Department of Local Government, Industry Regulation and Safety." The review is actually run by Consumer Protection within DEMIRS (Department of Energy, Mines, Industry Regulation and Safety), with the report to be tabled by the Minister for Commerce. The review itself is real (see Consumer Protection link above).

5. WHO IS RESPONSIBLE - SHIRE HOLDS THE LICENCE

Item 10.4.2 (p32): the park "is owned by the Shire of Boyup Brook, with the Shire holding the Caravan Park licence," and is "managed and operated by" CMCA in accordance with the Caravan Parks and Camping Grounds Act 1995. This answers the earlier "who is the park operator" question: the Shire owns the land and holds the licence; CMCA manages. The Shire is squarely a responsible party. This is consistent with the earlier CEO statement that the Shire retains responsibility for long-term residents, and with s 70 of the Parks Act (protection against the holder of superior title).

6. THE "NEAT AND TIDY" RULE IS THE TARGETING LEVER

Site presentation appears as a general standard (Guest Stay Policy, Section 7) and is built into the only exemption - the Essential Worker provision (Section 4) requires the guest to "maintain their site in a clean, tidy, and orderly condition at all times," with approval "at the sole discretion of park management" and able to be "withdrawn at any time." That discretion is exactly where selective treatment of Mel can operate. Evidence of how the tidiness standard is applied to Mel versus other residents goes directly to improper motive / inconsistent enforcement. Keep documenting it (photos, dates, who said what).

7. GREG'S PATHWAY (Essential Worker)

The report itself names qualifying essential work: "shearing, infrastructure projects, road works and health services" (item 10.4.1, p27). If Greg works for Charles Caldwell in a qualifying role, he can lodge an Essential Worker Extended Stay Application (Attachment 10.4.2B). It must be submitted at least 14 days before the stay limit is reached; existing long-term guests otherwise get only 21 days. Lodge immediately, with employer confirmation, evidence of the need to reside locally, and proof fees are up to date. Note the approval is discretionary and revocable - so this is a shield, not a guarantee, and the SAT/long-stay protections remain the stronger ground.

8. PUBLIC AWARENESS

At the 28 May 2026 meeting, Sue White asked (Public Question 4, p8) about the Barracks buildings "since the Shire is having trouble with the new terms of occupancy of Caravan Parks, and the fact that a lot of our CMCA residents are local workers." The Shire's response engaged with the caravan park occupancy problem. So the issue is on the public record. (This is the caravan-park public question from a recent meeting - asked by Sue White, not "Tania".)

9. CITATION HOUSEKEEPING

- The 28 May 2026 minutes are UNCONFIRMED. Cite them as "unconfirmed minutes" until confirmed at the 25 June 2026 OCM.
- Author name: use "Carolyn Mallett" (double-t), as per every report byline. The attendance list (p5) types it "Carolyn Mallet" (single-t) - a typo in the source.
- Decision reference: CM 26/05/117 (28 May 2026), carried 7/0 (no dissent).

10. SUGGESTED NEXT STEPS

- Get Mel (and Greg) onto Circle Green Community Legal or the Bunbury tenant advocate now (contacts in the earlier brief) - the 21-day clock is the pressing risk.
- Establish each resident's occupancy start date (proves the 3-month / long-stay threshold).
- Keep the policy notice itself - it is the strongest single document, because it admits the 21-day self-eviction approach in writing.
- Pair this with the earlier-requested Shire-CMCA MOU and the former CEO's "responsibility for long-term residents" statement.
- Do NOT leave on the strength of the 21-day notice alone.